

TENTATIVE RULINGS

FOR: July 07, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Christopher Matthew Gillespie

19PR000227

FIRST AND FINAL ACCOUNT AND REPORT OF EXECUTOR AND PETITION FOR ITS SETTLEMENT AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The matter is CONTINUED to August 6, 2026, at 8:30 a.m. in Dept. B to allow counsel for Petitioner/Executor to discuss the estate and accounting with Objector/Beneficiary Ryan Gillespie and hopefully work toward a resolution. The clerk is directed to provide notice to the parties.

Objector/Beneficiary filed an objection to the Final Account on June 25, 2026, to which Petitioner/Executor replied on July 1, 2026. The Reply attempts to explain the concerns raised by Objector. The Reply further requests a 30-day continuance to allow time for communication with Executor and Beneficiary and attempts to resolve Beneficiary's objections informally. The request seems reasonable to the Court.

By July 30, 2026, Executor and Objector shall each, or jointly, file and serve supplemental briefing to apprise the Court of their resolution efforts.

The Final Distribution Hearing currently set for July 09, 2026, at 8:30 a.m. in Dept. B is VACATED as moot.

.....
Estate of Maxine Berge Freitas

24PR000084

STATUS HEARING RE: FINAL DISTRIBUTION

TENTATIVE RULING: An updated status report is on file. Based on the Court's review of the status report, the Court determines that continuation of administration is in the best interests of the estate and/or of interested persons. Thus, the Court orders that administration of the estate continue. (Prob. Code, § 12201, subd. (c)(2).) The matter is CONTINUED to November 6, 2027, at 8:30 a.m. in Dept. A.

The Status Hearing may be vacated if, prior thereto, the personal representative files a petition for an order for final distribution. No later than 15 days prior to the next hearing, the personal representative shall file a status report. Pursuant to Probate Code section 12201, the status report shall include the following statement: "YOU HAVE THE RIGHT TO PETITION FOR AN ACCOUNT UNDER SECTION 10950 OF THE CALIFORNIA PROBATE CODE."

The Clerk is directed to provide notice to the parties.

.....
Estate of Dorothy Unsicker

24PR000282

FINAL DISTRIBUTION HEARING

TENTATIVE RULING: A status report is on file. Based on the Court's review of the status report, the Court determines that continuation of administration is in the best interests of the estate and/or of interested persons. Thus, the Court orders that administration of the estate continue. (Prob. Code, § 12201, subd. (c)(2).) The matter is CONTINUED to July 07, 2027, at 8:30 a.m. in Dept. A. The Status Hearing may be vacated if, prior thereto, the personal representative files a petition for an order for final distribution. The personal representative shall file a status report 10 days prior to the next hearing. The Clerk is directed to provide notice to the parties.

CASE MANAGEMENT CONFERENCE RE: PETITION FOR DETERMINATION OF HEIRS
[Filed 5/6/2026]

APPEARANCE REQUIRED

.....
Estate of Cammie S. Allen

25PR000161

REPORT OF STATUS OF ADMINISTRATION AND PETITION FOR SETTLEMENT
THEREOF; PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNT;
PETITION FOR STATUTORY ATTORNEY'S FEES; AND PETITION FOR
REIMBURSEMENT OF COSTS

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The
September 24, 2026 Status Hearing Re: Final Distribution is therefore VACATED.

.....
Estate of Sally Enea Servidio, aka, Sally Craig,
Sally Eizabeth Enea, and Sally

26PR000090

[1] AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS
TESTAMENTARY AND AUTHORIZATION TO ADMINISTER UNDER THE
INDEPENDENT ADMINISTRATION OF ESTATES ACT (Filed by Vincent Servidio
5/7/26)

and

[2] PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY AND
AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT (Filed by Antonio Servidio 5/29/26)

APPEARANCE REQUIRED. The parties shall attend prepared to discuss whether any
opposition is anticipated, whether the parties intend to submit on verified pleadings and
affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or
other pre-hearing practice is anticipated, and whether the parties are willing to participate in
informal settlement discussions or other alternative dispute resolution proceedings. Should any
party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an
estimate for the length of the hearing, and to set the hearing on the Court's calendar. Counsel are
directed to meet and confer on the foregoing issues prior to the hearing.

**In The Matter of The William R. and Gloria I. Garibaldi
Living Trust**

26PR000103

AMENDED PETITION FOR ORDER DETERMINING TRUST'S TITLE TO PROPERTY
[Filed 5/29/26]

TENTATIVE RULING: The matter is CONTINUED to August 11, 2026, at 8:30 a.m. in Dept. B. Petitioner is directed to serve the petitioning documents on, and provide sufficient notice of the continued hearing to, Decedent Gloria I. Garibaldi's grandchildren listed as specific gift, and remainder, beneficiaries in the Third and Fourth Amendments to the Trust, attached as Exhibit A to the Amended Petition. (See Prob. Code, §§ 851, subd. (b)(3), 17203, subd. (a)(2).)

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jon Carstens v. Covidien, Inc. et al

23CV000953

COVIDIEN DEFENDANT'S MOTION TO CONTINUE TRIAL

APPEARANCE REQUIRED: The parties are directed to appear prepared to: (1) inform the Court whether there is any opposition to the Motion; and (2) discuss new trial dates.

The Motion was not properly noticed for hearing. June 19, 2026, and July 3, 2026, were Court holidays. Thus, June 9, 2026, was the last day for service, by electronic means, of Notice and moving papers set for hearing on July 7, 2026. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).)

However, requests to continue trial may be made ex parte. (See Cal. Rules of Court, rule 3.1332(b).) The Court would, therefore, like to hear from the parties regarding the substance of the Motion.

.....
Adam Sutton v. Eikos, Inc

23CV001258

PLAINTIFF'S MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT
AND REQUEST FOR ATTORNEY'S FEES, COSTS, AND CLASS REPRESENTATIVE
SERVICE PAYMENT

TENTATIVE RULING: The motion for final approval of class action settlement is GRANTED. The Court will sign the proposed order. The matter is set for a Settlement Compliance Hearing on November 7, 2026, at 8:30 a.m. in Dept. A

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

.....
Wells Fargo Bank, N.A. v. Phillip P Coulter

24CV002239

**MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT PURSUANT TO
STIPULATION**

TENTATIVE RULING: The motion is DENIED.

Wells Fargo Bank, N.A. (Plaintiff) moves, pursuant to Code of Civil Procedure section 664.6, to vacate the dismissal in this instant matter and enter Judgment pursuant to the Parties' Stipulation.¹

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

The unspoken inference in Plaintiff's argument is that Section 664.6 authorizes the Court to vacate an order dismissing the action. Plaintiff fails to support the inference with discussion, argument, or citation to case law.

Because the matter was dismissed, by stipulation of the parties, on May 15, 2025, the Court lacks jurisdiction to enter the requested judgment.

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court...for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (§ 664.6, subd. (a).)

As the Court reads the statute, it permits parties to a settlement agreement to move the Court to enter judgment on the action, *and under those circumstances*, to retain jurisdiction to enforce the settlement. The Court can find no language in the statute that would permit the Court

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

to vacate a dismissal entered at the parties' request in order to regain jurisdiction to enter judgment.

"An action which is voluntarily dismissed in its entirety is no longer pending. [Citation.]" (*Viejo Bancorp, Inc. v. Wood* (1989) 217 Cal.App.3d 200, 206 (*Viejo*)). Even if the Court finds that Respondent breached the settlement agreement, "the court's resolution of this factual issue [would] not permit it to enter judgment in the [dismissed] action. In short, in the absence of a motion under Code of Civil Procedure section 473 to vacate the dismissal, the court [is] without subject matter jurisdiction of the [dismissed] action." (*Ibid.*)

As noted above, On May 15, 2025, the Court, on stipulation of the parties, dismissed the instant action by signing an order proposed by Plaintiff. Pursuant to the holding in *Viejo*, the Court is without jurisdiction to enter judgment in this action, pursuant to Section 664.6 or otherwise. This is not to say that Plaintiff is without rights to assert a claim against Defendant for breach of the settlement agreement. But this Court does not have jurisdiction to consider the claim in this action. (See *Viejo, supra*, 217 Cal.App.3d at 206.)

.....

University Credit Union v. Kamaladevi Zamora

25CV000637

**DEFENDANT'S MOTION TO COMPEL FURTHER DEPOSITION TESTIMONY OF
UNIVERSITY CREDIT UNION AND FOR SANCTIONS**

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Kamaladevi Zamora ("Defendant") moves, pursuant to Code of Civil Procedure 2025.230,² to compel the further deposition testimony of Plaintiff University Credit Union ("Plaintiff"). Defendant further moves, pursuant to section 2023.030, for sanctions against Plaintiff. Although not in the Notice of Motion, the specific relief Defendant seeks through the moving papers is an order compelling Plaintiff to produce "Frank Perez for further deposition" or produce a "properly prepared" and "true" person most qualified ("PMQ") who is able to speak on all categories in the Notice of Deposition, served February 24, 2026, and who is familiarized with all produced documents. (See Mem., 1:19-20, 5:23, 14:17-27.)

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

To the extent Defendant seeks a further deposition of Mr. Perez and/or an order that Plaintiff's counsel not obstruct a certain line of questioning,³ such requests are governed by section 2025.480, subdivision (a). The Notice of Motion does not cite to this code section, nor does the Memorandum discuss or analyze the standards therefor. Nevertheless, the Court is aware that a motion under section 2025.480, subdivision (a) must be accompanied by a separate statement identifying *verbatim* the specific questions and responses in dispute and the legal reasons a further response is required, pursuant to Rules of Court, rule 3.1345(a).

Defendant's instant motion is not accompanied by a Separate Statement. Nor does Defendant's motion provide a concise summary of the disputed questions and responses. Defendant's unauthenticated⁴ inclusion of Mr. Perez's 126-page deposition transcript is unauthorized and unhelpful to the Court's review of the dispute. (Rules of Court, rule 3.1345(c) ["A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response."].)

Based on the foregoing procedural defects, the request to compel the further deposition of Mr. Perez is DENIED.

Defendant's Proposed Order contains relief not identified in the Notice of Motion, nor adequately discussed in the Memorandum; namely, Paragraph 3 "Outstanding Documents" and Paragraph 4 "Continued Time." For this reason, the foregoing relief is DENIED.

B. LEGAL STANDARD

"Any party may obtain discovery ... by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (§ 2025.010.)

"If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent." (§ 2025.230.)

If the subject matter of the questioning is clearly stated, the burden is on the entity, not the examiner, to produce the right witnesses. And if the particular officer or employee designated lacks personal knowledge of all the information sought, that person must find out from those who do. (*LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 948 [citing *Weil & Brown et al.*,

³ In Reply, Defendant asserts: "It does not ask the Court to rule on individual deposition questions." (Reply, 2:15-16.)

⁴ Exhibit E to the Declaration of Sacha Maniar appears to be Mr. Perez's deposition transcript, referenced in Defendant's Memorandum. However, the Maniar Decl. does not authenticate, much less address, Exhibit E.

Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2001), § 8:474]; *Maldonado v. Sup. Ct.* (2002) 94 Cal.App.4th 1390, 1390-96 [same].) However, “[n]o California case directly addresses the scope of the organization’s obligation to prepare its designee.” (Block, Dunne on Depositions in California (Oct. 2024), Ch. 14, § 14:5.)

Moreover, “[i]t is unclear whether an organization must produce multiple *qualified* witnesses if they exist or only the one who is *most* qualified. There are no answers to these questions in published California decisions. [¶] ... California law is not developed in this area. By use of the term ‘qualified’ rather than the term ‘knowledgeable’ [as used by federal statutes], California’s legislators presumably wanted to avoid discovery disputes over the issue of whether a given witness is the most knowledgeable within an organization about a given subject. Plainly, two witnesses might have knowledge about different facts such that neither is ‘most knowledgeable.’ As such, the decision is left to the organization which among those witnesses with some knowledge is the most qualified to answer questions for the organization.” (Block, Dunne on Depositions in California (Oct. 2024), Ch. 14, § 14:4.)

Defendant has not provided, nor has the Court been able to locate, any statutory authority for a motion to compel related to section 2025.230 or a PMQ Deposition. However, “[a]pparently, a motion would lie to compel the corporation to designate someone having the information requested.” (Weil & Brown, *et al.*, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2026), Ch. 8E-3, § 8:476.)

That said, the Weil & Brown treatise provides sound practice guidance as follows: “The entity’s duty to designate the ‘most qualified’ person to testify on its behalf has limited utility. [¶] It may be useful if all you need is to authenticate corporate records or proceedings. But it may not pin down exactly who knows what, or did what, within the organization. I.e., the witness designated as the ‘most qualified’ by the corporation may not have the information you require. So you may have to take additional depositions to find out what you need to know. [¶] Therefore, if the matter involved is critical to your case, do not rely on the entity’s duty to designate the ‘most qualified’ officer or employee. It is better practice to do your own investigation or send out interrogatories asking who in the organization has knowledge of the particular facts you seek; and take that person’s deposition.” (*Id.*, § 8:477.)

C. DISCUSSION

Here, the February 24, 2026 Notice of PMQ Deposition includes 27 broad categories of examination. While the motion identifies certain categories for which the designees purportedly lacked personal knowledge, there is no indication that the designees lacked personal knowledge of *all* the information sought. Thus, this does not seem to meet the standard contemplated in *LAOSD Asbestos Cases* or *Maldonado*.

Moreover, Defendant’s arguments that the prior deponents lacked personal knowledge on certain categories are conclusory and difficult to follow. First, the outstanding categories for which the designated PMQs purportedly lack personal knowledge are not clearly identified. In this context, the Court would have a difficult time determining the categories for which Plaintiff would need to designate new PMQs. Second, there is insufficient evidentiary support and

analysis as to why the prior testimony does not meet the standard under section 2025.230. Here, a Separate Statement would be helpful. (See Rules of Court, rule 3.1345.) Third, Defendant appears to be applying a higher standard than that required under section 2025.230—that the deponents testify “as to those matters to the extent of any information known or reasonably available to the deponent.” (§ 2025.230.) For example, the fact that Ms. Brady testified she does “not specialize in origination” does not necessarily render her an improper PMQ on core origination/underwriting topics. Moreover, testimony identifying someone else as “more knowledgeable” on a topic does not negate that the deponent is the “most qualified” on the topic. Given the lack of guidance on the standard for PMQ depositions and on an entity’s duty to prepare the PMQ, the Court is reluctant to adopt Defendant’s proffered standards which seem to exceed the bounds of section 2025.230.

Based on the foregoing, the motion to compel Plaintiff to produce a “properly prepared” and “true” PMQ who is able to speak on all categories in the February 24, 2026 Notice of Deposition and who is familiarized with all produced documents is DENIED.

The parties shall continue to meet and confer to ascertain the appropriate designee(s) on each of the outstanding 27 categories contained within the Notice of Deposition. Defendant is also urged to make use of the guidance set out in the Weil & Brown treatise set forth above in section C. To the extent the parties are unable to reach an informal resolution, either may bring an appropriate motion, accompanied by a declaration setting out in detail the parties’ meet and confer efforts. To the extent Defendant subsequently moves to compel a PMQ designation, any such motion shall (1) specify, in the Notice of Motion, the particular category/ies of testimony for which they seek a designation, and (2) be accompanied by a Separate Statement in compliance with Rules of Court, rule 3.1345(c). The Separate Statement should, at minimum, (1) be separated by category of testimony and (2) provide legal and factual reasons why an additional designation on such category is required—specifically, why the previously designated PMQ(s) are not “qualified” on the category, by identifying *verbatim* the questions and responses of the testimony that demonstrates the alleged insufficiency.

The Court recognizes Plaintiff’s argument in Opposition that Defendant is not entitled to more than one deposition in this Limited Civil Action case. While Limited Civil Actions are governed by section 94 limiting each party to one deposition as to each adverse party, “a deposition of an organization shall be treated as a single deposition even though more than one person may be designated or required to testify pursuant to Section 2025.230.” (§ 94, subd. (c).) Thus, Plaintiff’s attempt to limit the PMQ depositions lacks merit.

D. SANCTIONS

Defendant’s request for sanctions pursuant to section 2023.030 is DENIED on the ground that Defendant’s Notice of Motion fails to identify the type of sanction sought (see § 2023.040) and further fails to state the applicable “misuse of the discovery process” under section 2023.010 that has been violated. These defects cannot be remedied through inclusion, for the first time, in Reply.

.....

****at 9:30 a.m.****

Ammar Sfeir et al v. Monsanto Company et al

26CV000107

- [1] VERIFIED APPLICATION OF COLIN WATTERSON TO APPEAR AS COUNSEL PRO HAC VICE FOR PLAINTIFFS AMMAR AND RENE SFEIR

TENTATIVE RULING: The application is GRANTED.

- [2] VERIFIED APPLICATION OF JOANNA R. MCKINNEY TO APPEAR AS COUNSEL PRO HAC VICE FOR PLAINTIFFS AMMAR AND RENE SFEIR

TENTATIVE RULING: The application is GRANTED.